

DECISIONS · 9 DEC 1998

Judgment

TYPE	COURT	DATE	PARTIES
Court decision	The Paris Court of Appeal	9 Dec 1998	Bernard Collorafi v. McDonald's France

SUMMARY SHEET

Interim judgment — Paris Court of Appeal · 9 December 1998

Overview: judgment after hearing both parties of the Paris Court of Appeal (16th chamber, section A, 24 pages) ruling on the appeal brought by the companies SEBOL, B et O, LES PINS and Mr Bernard Collorafi against the judgment of the Paris Commercial Court of 18 May 1998, McDonald's France being the respondent.

Key points

The Court recalls that the judgment under appeal had dismissed the appellants' claims, recorded the automatic termination of the lease-management and licence agreements as of 2 January 1998, ordered eviction, and ordered the companies and Mr Collorafi, jointly and severally, to pay unpaid fees and occupation indemnities.

- SEBOL and Mr Collorafi: 1,867,247.84 F in fees;
- B et O and Mr Collorafi: 1,533,548.87 F;
- LES PINS and Mr Collorafi: 504,474.42 F.

The Court declares inadmissible the claims for recharacterisation of the agreements as commercial leases and for nullity. Before ruling on the merits, it orders a court-ordered expert report, appointing Mr Jean-Luc Dumont and Mr Alain Martin, with payment of advances (40,000 francs in total) and filing of the report within five months.

Significance

A pivotal document in the appeal: without ruling on the merits, it rejects the grounds of nullity and opens an expert-report phase on the possible liability of the franchisor.

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Source: bernardcollorafi.org/en/documents/paris-court-of-appeal-interim-judgment-expert-report-collorafi-1998/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.